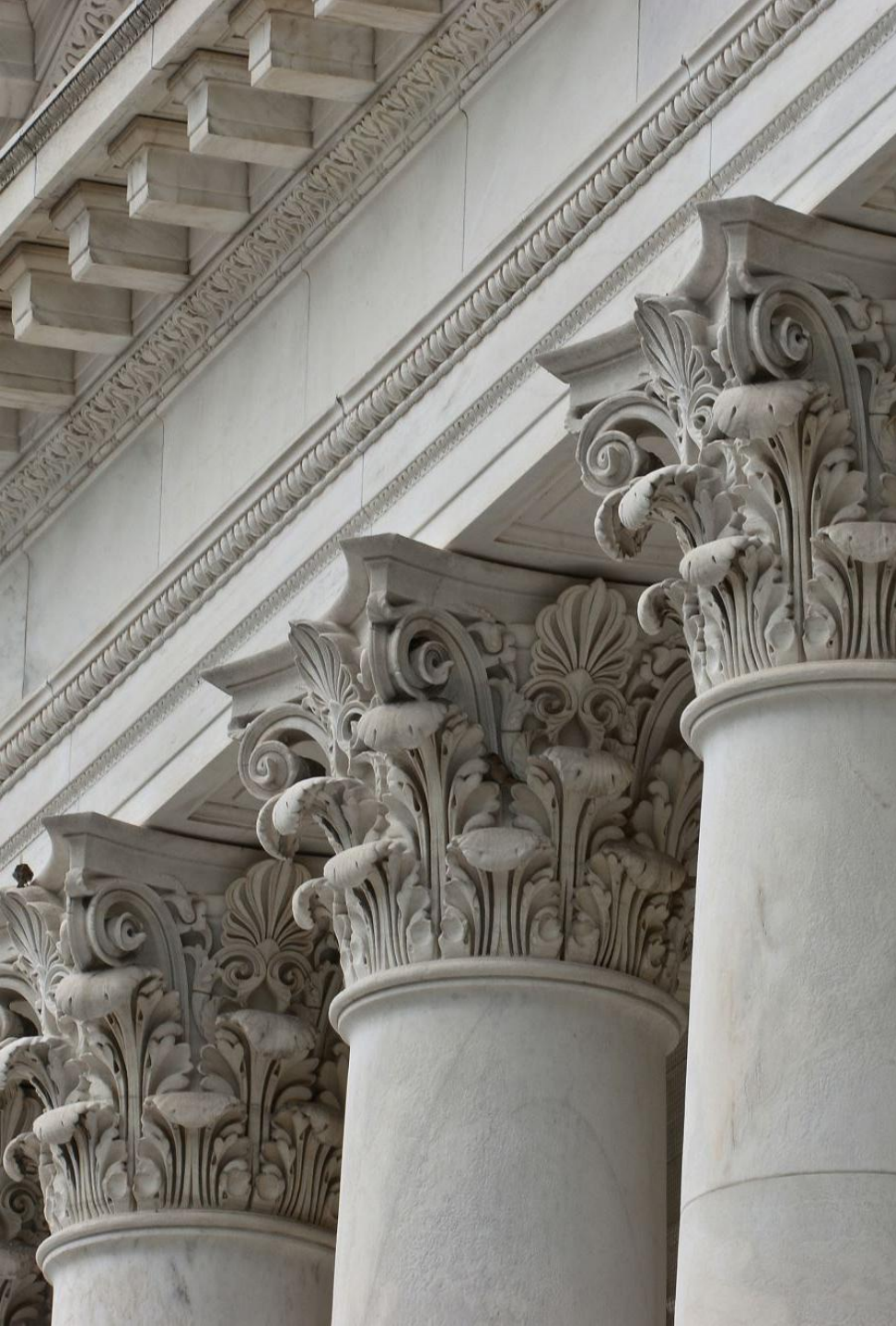




AROR UNIVERSITY
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CONSTITUTION 1962 & ITS SALIENT FEATURES

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HISTORICAL BACKGROUND OF THE 1962 CONSTITUTION

- After **Pakistan's independence in 1947**, the country initially followed the **Government of India Act 1935** as an interim constitution.
- The **first Constitution of Pakistan (1956)** introduced a **parliamentary form of government** and declared Pakistan an **Islamic Republic**.
- However, the 1956 Constitution was **suspended** following the **imposition of Martial Law on 7 October 1958** by **General Muhammad Ayub Khan**.
- **President Iskander Mirza** abrogated the 1956 Constitution but was soon **removed by Ayub Khan**, who assumed **full control as Chief Martial Law Administrator**.
- To provide a **civilian legal framework**, Ayub Khan appointed a **Constitution Commission in 1960**, headed by **Justice Shahabuddin**, to draft a new constitution.





HISTORICAL BACKGROUND OF THE 1962 CONSTITUTION

- The Commission recommended a **Presidential form of government** instead of a parliamentary one, aiming for **strong executive leadership**.
- The **Constitution of 1962** was **promulgated by President Ayub Khan on 1 March 1962**, and on **8 June 1962**, when Martial Law was lifted.
- It was the **second constitution of Pakistan** and marked a shift from **parliamentary democracy to presidential rule**.
- The Constitution aimed to ensure **stability, efficient administration**, and **centralized authority** under Ayub Khan's vision of "**Basic Democracies**."
- It remained in force until **25 March 1969**, when **General Yahya Khan** abrogated it and imposed **Martial Law again**.



CONSTITUTION OF 1962

- **Dates:** Promulgated by President Ayub on 1st March 1962 & Enforced on June 08, 1962
- **Form of Govt:** It introduced the Presidential System.
 - It means all the powers were concentrated in the office of the President.
- **Basic Democracy:** The System of Basic Democracy was made part of the constitution.
- **Organization:** Articles (250); Parts (12); Schedule (03)
- **Election System:** An Indirect System of election was introduced.
- **The judiciary:** Independent & responsible for the **interpretation of laws**.
- **National Languages:** Urdu & Bangla.
- **Nature:** It was also a **Rigid Constitution**; Amending it required a **2/3 Majority**



BASIC DEMOCRACIES SYSTEM (1959)

- Introduced by **President Ayub Khan in 1959** to promote **grassroots participation** in governance.
- A **four-tier local government system**:
 - **Union Council**: at the **village level** (basic unit of local government).
 - **Tehsil Council**: at the **sub-district level**.
 - **District Council**: at the **district level**.
 - **Divisional Council**: at the **divisional (regional) level**.
- **80,000 “Basic Democrats”** were elected directly by the people.
- These local representatives acted as a **bridge between the government and citizens**.
- They also served as an **electoral college** for electing the **President and National/Provincial Assemblies** under the **1962 Constitution**.
- Officially aimed at **training people in democracy**, but in practice, it **strengthened Ayub Khan’s control** over politics.



DIRECT VS. INDIRECT ELECTION SYSTEM

- Voters **directly choose** their representatives through voting.
- Each citizen's vote has a **direct impact** on the election result.
- Ensures **greater public participation** and accountability.
- Common in **democratic systems** for legislatures.
- **Example (Pakistan):**
 - Members of the **National Assembly** and **Provincial Assemblies** are elected **directly** by the people through general elections.
- **Indirect Election System**
- Voters **elect representatives**, who then **elect other officials** (a two-step process).
- Used to choose **heads of state** or **upper house members** in some systems.
- Ensures **filtered or controlled representation**, but less public involvement.
- **Example (Pakistan):**
 - The **President of Pakistan** is elected **indirectly** by the **electoral college** (members of the National Assembly, Senate, and Provincial Assemblies).
 - Similarly, **Senators** are elected **indirectly** by the **Provincial Assemblies**.



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**Thank you for your time and
attention!**

**Hopefully, I will see you in the next
class. Until then, take care, & have a
great day!**

